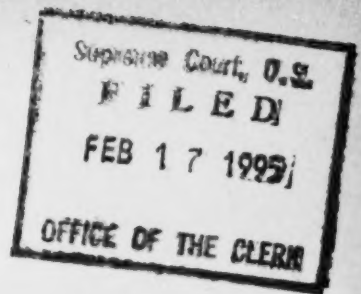


(3)
No. 94-431



IN THE

Supreme Court of the United States

OCTOBER TERM, 1994

JAMES D. RYDER, PETITIONER

v.

THE UNITED STATES OF AMERICA, RESPONDENT

ON WRIT OF CERTIORARI TO THE UNITED STATES
COURT OF APPEALS FOR THE ARMED FORCES

BRIEF FOR THE PETITIONER

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QUESTION PRESENTED

May the *de facto* officer doctrine be relied upon to affirm the acts of civilians improperly appointed to serve as military appellate judges by the Judge Advocate General of an Armed Force, who is not authorized to make appointments under the Appointments Clause of the Constitution, when those acts include affirming criminal convictions on direct appeal?

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BRIEF FOR THE PETITIONER

OPINIONS BELOW

The decision of the United States Court of Military Appeals, *United States v. Ryder*, 39 M.J. 454 (C.M.A. 1994) is reprinted as Appendix A to the Petition at App. 1a. The opinion of the United States Coast Guard Court of Military Review, *United States v. Ryder*, 34 M.J. 1077 (C.G.C.M.R. 1992), is reprinted as Appendix B to the Petition at App. 12a. The further decision of the United States Coast Guard Court of Military Review on reconsideration, *United States v.*

Ryder, 34 M.J. 1259 (C.G.C.M.R. 1992), is reprinted as Appendix C to the Petition at App. 25a.

JURISDICTION

The decision of the Court of Military Appeals was issued on June 23, 1994. The petition for a writ of certiorari was timely filed on September 9, 1994, and the petition was granted on January 6, 1995. The jurisdiction of this Court is invoked under Article 67a of the Uniform Code of Military Justice, 10 U.S.C. § 867a (Supp. II 1990) and 28 U.S.C. § 1259(3) (Supp. II 1990).

CONSTITUTIONAL PROVISIONS AND STATUTES INVOLVED

The Appointments Clause, U.S. Const. art. II, § 2, cl. 2, provides:

The President . . . shall nominate, and by and with the Advice and Consent of the Senate, shall appoint Ambassadors, other public Ministers and Consuls, Judges of the Supreme Court, and all other officers of the United States, whose Appointments are not herein otherwise provided for, and which shall be established by Law; but the Congress may by Law vest the Appointment of such inferior Officers, as they think proper, in the President alone, in the Courts of Law, or in the Heads of Departments.

The relevant provision of the Uniform Code of Military Justice, Article 66, 10 U.S.C. § 866, provides in pertinent part:

(a) Each Judge Advocate General shall establish a Court of Military Review which shall be composed of

one or more panels, and each such panel shall be composed of not less than three appellate military judges. For the purpose of reviewing court-martial cases, the court may sit in panels or as a whole in accordance with rules prescribed under subsection (f). Any decision of a panel may be reconsidered by the court sitting as a whole in accordance with such rules. Appellate military judges who are assigned to a Court of Military Review may be commissioned officers or civilians, each of whom must be a member of a bar of a Federal court or of the highest court of a State.

* * *

(c) In a case referred to it, the Court of Military Review may act only with respect to the findings and sentence as approved by the convening authority. It may affirm only such findings of guilty, and the sentence or such part or amount of the sentence, as it finds correct in law and fact and determines, on the basis of the entire record, should be approved. In considering the record, it may weigh the evidence, judge the credibility of witnesses, and determine controverted questions of fact, recognizing that the trial court saw and heard the witnesses.

* * *

STATEMENT OF THE CASE

Petitioner was a Boatswain's Mate Second Class (pay grade E-5), U.S. Coast Guard, at the time of his court-martial in the summer of 1989. He was tried by a general court-martial composed of officer and enlisted members. Contrary to his pleas, he was convicted of various drug-related

violations of the Uniform Code of Military Justice (UCMJ). His approved sentence, as affirmed by the lower courts, was confinement for three years, forfeiture of \$699 per month for thirty-six months, reduction to the lowest enlisted grade (E-1), and a dishonorable discharge. The question presented is whether the constitutional invalidity of the appointments of two of the three judges of the Coast Guard Court of Military Review who heard Petitioner's appeal can be disregarded by invoking the *de facto* officer doctrine.¹

A. The Military Appellate Judiciary

Under Article I of the Constitution, Congress has established a three-tier system of military courts. At the top is the U.S. Court of Military Appeals, which has five civilian judges appointed by the President with the advice and consent of the Senate for fixed terms of office. Art. 142, UCMJ, 10 U.S.C. § 942 (1988).²

¹ Although Petitioner has already served his entire period of confinement, this case is not moot because the dishonorable discharge remains approved, but unexecuted. The reduction in pay grade and forfeiture of pay have been executed, but could be restored through further proceedings. See Art. 75, UCMJ, 10 U.S.C. § 875. The conviction is not yet final. Art. 76, UCMJ, 10 U.S.C. § 876; R.C.M. 1209, Manual for Courts-Martial, United States, 1984 (1994 Edition).

² Effective October 5, 1994, the name of the U.S. Court of Military Appeals was changed to the U.S. Court of Appeals for the Armed Forces, and the names of the service Courts of Military Review were changed to the Courts of Criminal Appeals. National Defense Authorization Act for Fiscal Year 1995, Pub. L. No. 103-337, § 924, 108 Stat. 2663, 2831 (1994). For simplicity and consistency, the courts involved will continue to be referred to by their former names throughout this brief, because those were their names at all times relevant to this case.

Below the Court of Military Appeals are four Courts of Military Review; one each for the Army, Air Force, Navy-Marine Corps, and Coast Guard. Absent waiver by an accused, the Courts of Military Review are required to review all cases in which a death sentence, confinement for one year or more, a dismissal, or a dishonorable or bad-conduct discharge is part of the approved sentence. Art. 66(b), UCMJ, 10 U.S.C. § 866(b). Courts of Military Review exercise all of the traditional powers of appellate courts, as well as an "awesome, plenary, *de novo* power of review[.]" *United States v. Cole*, 31 M.J. 270, 272 (C.M.A. 1990). Thus, a court of military review "may affirm only such findings of guilty and the sentence as it finds correct in law and fact . . . [I]t may weigh the evidence, judge the credibility of witnesses, and determine controverted questions of fact[.]" Art. 66(c), UCMJ, 10 U.S.C. § 866(c).

Court of Military Review judges may be commissioned officers or civilians, all of whom are selected and assigned to the court by the Judge Advocate General of the service. Art. 66(a), UCMJ, 10 U.S.C. § 866(a). The Judge Advocate General is the official for each service who is responsible for the overall supervision of military justice matters. *See* Art. 6(a), UCMJ, 10 U.S.C. § 806(a). The Judge Advocate General of the Coast Guard is the General Counsel of the Department of Transportation. Art. 1(1), UCMJ, 10 U.S.C. § 801(1).

The Coast Guard Court of Military Review, which reviewed Petitioner's court-martial, consisted (and still consists) of five appellate military judges, two of whom were civilians (Chief Judge Baum and Judge Bridgman) and three of whom were Coast Guard commissioned officers.³ At the

³ The Coast Guard Court of Military Review is currently the only such

time the Court of Military Review reviewed this case, all of the judges on that court had been appointed by the General Counsel of the Department of Transportation. *United States v. Carpenter*, 37 M.J. 291, 294 (C.M.A.), *petition for cert. filed*, 62 U.S.L.W. 3411 (U.S. Oct. 29, 1993)(No. 93-676); Art. 66(a), UCMJ, 10 U.S.C. § 866(a). Courts of Military Review are typically divided into three-member panels to hear cases; Petitioner's court-martial was reviewed by such a three-member panel. Pet. App. 13a, 25a.

General courts-martial are presided over by military judges who are commissioned officers. Art. 26, UCMJ, 10 U.S.C. § 826. They can try any offense committed by a member of the armed services, and may impose any lawful sentence including death, imprisonment for life or a term of years, total forfeiture of pay and allowances, and a dishonorable or bad-conduct discharge (or a dismissal if the accused is an officer). Art. 18, UCMJ, 10 U.S.C. § 818.

B. Petitioner's Appeals

Petitioner's court-martial conviction and sentence were reviewed by the Coast Guard Court of Military Review, by a panel of judges which consisted of one commissioned officer (Judge Shkor) and two civilians (Chief Judge Baum and Judge Bridgman). Pet. App. 12a, 24a. The constitutionality of the appointment of the military trial and Court of Military Review judges was raised before the Court of Military Review, but was rejected. Pet. App. 24a. The Court of Military Appeals then exercised its discretionary jurisdiction to consider Petitioner's claim that the manner in which the

³ Cont. court to include civilians as judges. The last time any other Court of Military Review included civilian judges was in 1972.

trial and appellate military judges in his case were appointed violated the Appointments Clause of the Constitution. However, while the appeal was pending, this Court ruled in *Weiss v. United States*, 114 S. Ct. 752 (1994), that military judges who are commissioned officers need not receive a separate appointment under the Appointments Clause as a military trial or appellate judge to perform judicial duties. In doing so, the Court specifically declined to decide whether that ruling applied to civilians who may be assigned to the Courts of Military Review. *Id.* at 757 n.4.

In Petitioner's case, the issue reserved by this Court in *Weiss* was not squarely addressed by the Court of Military Appeals, since that court had previously decided the issue in *United States v. Carpenter*, 37 M.J. 291 (C.M.A. 1993). That court's consideration of the issue of the appointment of civilian Court of Military Review judges produced four published opinions, although all judges voted to affirm. Judge Gierke, joined by Judge Cox, authored the opinion of the court. Relying on the court's decision in *Weiss*, he first concluded that the military judge who presided over Carpenter's court-martial and two of the three Coast Guard Court of Military Review judges (the two who were commissioned officers on active duty) who reviewed the court-martial were appointed consistently with the Appointments Clause. *Carpenter*, 37 M.J. at 293. However, with respect to the civilian member of the Court of Military Review panel in *Carpenter*, its prior decision in *Weiss* was not controlling.

The Government argued that the appointment of Chief Judge Baum (and, by implication, Judge Bridgman) was properly made by the Secretary of Transportation through delegation to the Judge Advocate General. It also argued that, since the civilian judges were retired military officers, their

appointments were proper because they remained commissioned officers whose appointments as such made a separate appointment as a court of military review judge unnecessary.⁴ The court rejected both of those arguments, and concluded that the appointment of civilians to the Court of Military Review violated the Appointments Clause. *Carpenter*, 37 M.J. at 294–295. However, in a one-sentence ruling, citing only this Court's decision in *Buckley v. Valeo*, 424 U.S. 1 (1976), a civil action seeking declaratory and injunctive relief, not a criminal appeal, the Court of Military Appeals afforded *de facto* validity to the acts of the civilian judge, and affirmed the decision of the Court of Military Review. Chief Judge Sullivan and Judge Wiss both concurred separately based on the *de facto* appointment rationale. *Carpenter*, 37 M.J. at 300–301. Judge Crawford relied on her separate opinion in *Weiss* (36 M.J. at 234–240), and concurred in the result with respect to the Appointments Clause issue. *Carpenter*, 37 M.J. at 300.⁵

⁴ Both Chief Judge Baum and Judge Bridgman are retired military officers, but are employed and serving in civilian billets. See *United States v. Kovac*, 36 M.J. 521, 525 (C.G.C.M.R. 1992).

⁵ On January 15, 1993, the then-Secretary of Transportation, Andrew Card, signed a memorandum purporting to appoint all the judges of the Coast Guard Court of Military Review, including Chief Judge Baum and Judge Bridgman. Because that action occurred well after the decisions of the Court of Military Review in this case, the validity of those appointments is not at issue here. For the same reason, it was not at issue in *Carpenter*, either, and so the views expressed in *Carpenter* on the validity of the Secretary's memorandum are mere dicta. Furthermore, if the Government's position is correct, there was no need for the Secretary to reappoint the two civilian judges, even after *Carpenter*, since presumably they could have continued to decide cases as *de facto* officers as long as they remained on the court.

SUMMARY OF ARGUMENT

This case seeks to ensure that the separation of powers requirements and protections embodied in the Appointments Clause are available to those tried by courts-martial whose cases are reviewed by the Courts of Military Review. More specifically, the issue is whether the *de facto* officer doctrine can be relied upon to save the acts of military appellate judges who were not appointed in accordance with the specific requirements of the Appointments Clause when the issue of their unconstitutional appointments was raised before the court involved, and two of the appellate judges on the case were invalidly appointed.

No case cited by the Government or found by Petitioner supports the application of the *de facto* officer doctrine to a situation like this. The cases in which the doctrine has been applied are all substantially different from the situation presented in this case. None has ever applied the doctrine in a direct criminal appeal where the challenge is to the appointment of a judicial officer who sat on the defendant's case. Moreover, there are several cases in which application of the *de facto* officer doctrine would have provided a simple way to resolve the case, but it was not applied. These cases illustrate the limitations of the doctrine.

Application of the doctrine in this case would deny Petitioner the benefit of a favorable ruling on the underlying issue of the constitutionality of the appointments of the appellate judges involved. Such a result would be contrary to this Court's precedents holding that judicial decisions in both criminal and civil cases cannot be applied prospectively only, and that the law announced in a case must be applied to the litigants in that case.

This case simply does not present the type of problem the *de facto* officer doctrine was created to avoid. The doctrine was developed as a matter of necessity to avert the confusion and chaos which would result from decisions, often highly technical, which would invalidate the acts of a public official taken months or years before. Thus, the doctrine protects the public and third parties who relied on the acts of the officeholder. In a direct criminal appeal such as this, in which the issue was raised before the court on which the improperly-appointed judges sat, there are no third parties who relied to their detriment on the defective appointments. In addition, the number of cases that would be affected by a ruling in favor of the Petitioner would be small; cases that are already final could not be reopened. Therefore, no chaos or confusion would result.

ARGUMENT

THE *DE FACTO* OFFICER DOCTRINE CANNOT BE APPLIED IN THIS CASE.

A. Introduction

The Appointments Clause of the Constitution, Art. II, § 2, cl. 2, sets strict limits on the power and methods of appointing officers of the United States. The most senior, or principal officers, may be appointed only by the President, with the advice and consent of the Senate. "Inferior" officers may be appointed by the President alone, the heads of departments, or the courts of law, if Congress has so provided by law. U.S. Const. art. II, § 2, cl. 2; *Freytag v. Comm'r of Internal Revenue*, 501 U.S. 868, 884 (1991). The Appointments Clause is part of the "Constitution's structural

separation of powers." *Id.* at 873. In addition to protecting against the encroachment of one Branch's power at the expense of another Branch, the Appointments Clause protects against the diffusion of the power of appointment. *Id.* at 878. The appointments at issue here represent an impermissible diffusion of the appointment power.

The Appointments Clause limits the potential holders of the power to appoint inferior officers to a small group of officials who are themselves politically accountable. Appellate military judges, who exercise extraordinary authority and discretion, are at least inferior officers of the United States and are subject to the Appointments Clause. *Weiss v. United States*, 114 S. Ct. 752, 757 (1994). The Judge Advocate General of the Coast Guard is neither the President, the head of a department, nor a court of law; accordingly, appointment of civilians to judicial service in the Armed Forces by him does not satisfy the Appointments Clause. *Id.*

The Solicitor General, in his brief in opposition to the petition for a writ of certiorari, did not contest the ruling in *Carpenter* that the appointment of the civilian judges to the Coast Guard Court of Military Review was invalid. Thus, the only question remaining is whether the *de facto* officer doctrine can be relied upon to affirm the acts of civilians improperly appointed to serve as military appellate judges by the Judge Advocate General, in a case in which the accused raised this issue during the direct appeal of his case.

B. No Authority Permits the Application of the De Facto Officer Doctrine to Affirm the Acts of Unconstitutionally Appointed Appellate Judges In a Direct Criminal Appeal.

The Court of Military Appeals upheld Carpenter's (and Petitioner's) conviction and sentence, despite the improper appointment of Chief Judge Baum, a civilian, of the Coast Guard Court of Military Review, by relying on the *de facto* officer doctrine. *Carpenter*, 37 M.J. at 295. In reaching that result, however, the court devoted only a single sentence to discussing the issue, and cited only one case, *Buckley v. Valeo*, 424 U.S. 1 (1976). *Buckley*, however, was an action seeking declaratory and injunctive relief to enjoin the operation of the Federal Election Commission on Appointments Clause and separation of powers grounds, not a direct appeal of a criminal conviction, and does not support the action of the lower court. Neither *Buckley*, nor any other case cited by the Government in its briefs to this Court in *Weiss* or *Federal Election Comm'n v. NRA Political Victory Fund*, 6 F.3d 821 (D.C. Cir. 1993), *cert. granted*, 114 S. Ct. 2703, and *cert. dismissed*, 115 S. Ct. 537 (1994)—the two recent cases in which the Government has sought to rely on the doctrine—supports its applicability here.

The *de facto* officer doctrine was developed to limit the circumstances in which government actions can be challenged by attacking the title of the officeholder responsible for the action. The doctrine is not simple, nor its limits yet clearly determined. See *Andrade v. Lauer*, 729 F.2d 1475, 1496–1501 (D.C. Cir. 1984). However, one proposition is clear—it has never been applied in a case with circumstances similar to the case at bar.

Most of the cases cited by the Government in its previous briefs, in which the *de facto* officer doctrine was

applied, are civil cases, not criminal, and the criminal cases most often involved collateral attacks on state criminal convictions in federal court. See *United States ex rel. Doss v. Lindsley*, 148 F.2d 22 (7th Cir.), *cert. denied*, 325 U.S. 858 (1945); *Ryan v. Tinsley*, 316 F.2d 430 (10th Cir.), *cert. denied*, 375 U.S. 17 (1963); see also *Ex parte Ward*, 173 U.S. 452, 454 (1899) (doctrine used in a criminal case to defeat collateral attack on the validity of a judge's title to office).

Two federal criminal cases in which the doctrine was relied on to sustain convictions on direct appeal are *McDowell v. United States*, 159 U.S. 596 (1895), and *Ball v. United States*, 140 U.S. 118 (1891). In *McDowell*, the doctrine was merely an alternative basis for affirming the conviction, and the facts involved were very different from those in this case. The defect alleged in *McDowell* was that proper procedures had not been followed in arranging for an assignment of a properly appointed federal judge from one district to sit in another district within the same circuit. The judge in question had not presided over the defendant's trial, nor was he present when the grand jury had returned the indictment. Rather, his only role was presiding when the grand jury was first sworn and impaneled. Under those circumstances, this Court refused to overturn the defendant's conviction for what was, at most, a highly technical violation of a statute, if a violation at all.

In *Ball*, the *de facto* officer doctrine was cited in a situation in which a properly appointed federal trial judge had been properly assigned from one district to fill a temporary vacancy in another, but his period of service slightly exceeded the express length of the assignment. More significantly, the convictions involved were reversed on other grounds, so the *de facto* officer doctrine was not essential to the resolution of the case.

Both *McDowell* and *Ball* concerned highly technical, non-constitutional violations of statutes for the assignment of properly appointed judges to serve outside their usual districts. By contrast, Petitioner's case concerns the successful constitutional challenge to the basic appointments of two of the three appellate judges involved in his appeal as of right, an appeal in which those judges have extraordinary, broad powers of review over both the legal and factual aspects of the conviction and sentence. See Art. 66(c), UCMJ, 10 U.S.C. § 866(c), and discussion at page 5, *supra*. These powers are particularly important because the Court of Military Review is the only avenue of judicial appeal as of right for most military appellants; further appeal to the Court of Military Appeals is by discretionary petition for grant of review. Art. 67, UCMJ, 10 U.S.C. § 867.

The inapplicability of the doctrine to Petitioner's case can be seen most easily by examining those cases in which it was not applied, but in which the doctrine would have provided an easy way to dispose of the case had it been applicable. Thus, in *Freytag v. Comm'r of Internal Revenue*, 501 U.S. 868 (1991), the Court could have avoided deciding the question of whether the Tax Court was a Court of Law or a Department under the Appointments Clause, which divided the Court 5-4, since the special trial judges there were clearly at least *de facto* officers.

Similarly, in *Morrison v. Olson*, 487 U.S. 654 (1988), determination of the constitutionality of the independent counsel statute would have been unnecessary since the doctrine, had it been applicable, would have sufficed to at least allow the independent counsel to enforce a grand jury subpoena, which was the specific action challenged there.

In *United States v. Woodley*, 751 F.2d 1008 (9th Cir. 1985)(en banc), *cert. denied*, 475 U.S. 1048 (1986), the court

of appeals divided 7-4 in a direct criminal appeal, but upheld a recess appointment of a district judge in the face of a claim that the appointment was inconsistent with the requirements of Article III, yet neither the majority nor dissenting opinions even mentioned the *de facto* officer doctrine.

Finally, in *Weiss*, the Court could have avoided the serious constitutional questions presented there if the *de facto* officer doctrine applied, as the Government urged, because the military judges involved were obviously acting at least as judges in fact. See Brief for the United States at 22-24, *Weiss v. United States*, 114 S. Ct. 752 (1994)(No. 92-1482).⁶

It is possible that the *de facto* officer doctrine was simply overlooked in many of these and other cases, such as *Northern Pipeline Constr. Co. v. Marathon Pipe Line Co.*, 458 U.S. 50 (1982), but that seems unlikely. The failure to rely upon the doctrine in those cases is best explained by its inapplicability either to a direct attack on a statutory scheme or, as here, when two judges directly involved in a criminal case have been appointed to their positions in violation of the Constitution.

In *Glidden Co. v. Zdanok*, 370 U.S. 530 (1962), the issue was the constitutionality of the assignment of judges of the Court of Claims and Court of Customs and Patent Appeals to sit on federal district courts. The decision involved both civil and criminal cases. The Court recognized that it would be well advised to decide the cases on narrower grounds, if any were available. One of the narrower grounds urged upon the Court to dispose of the cases was the *de facto* officer doctrine.

⁶ Indeed, taken to its logical conclusion, the members of Congress who exercised the legislative veto in *INS v. Chadha*, 462 U.S. 919 (1983), could be considered "*de facto* officers" whose actions would, under the Government's theory, be unchallengeable.

The argument was made that the judges involved were at least *de facto* officers whose assignments to the district courts could not be challenged by the petitioners. *Id.* at 535. The Court, after a review of the doctrine, rejected the argument that the *de facto* officer doctrine could be applied to the judges whose appointments were at issue in *Glidden*. *Id.* at 535-536.

Glidden illustrates the point that the *de facto* officer doctrine applies principally when the basis for the challenge to the officeholder's status is a technical defect, or when the challenge is a collateral attack on a prior judicial ruling. It does not apply when the defect is more than technical, and implicates a strong policy concerning the proper functioning of the government as reflected in the Constitution. *Id.* While the specific defect in the appointment of the judges involved in this case (appointment by an official not authorized by the Appointments Clause to receive the power to appoint officers) differs from the defect at issue in *Glidden* (lack of the tenure and compensation protections of Article III of the Constitution), they are both rooted in the Constitution. As in *Glidden*, the defect relates to a "basic constitutional protection," the separation of powers, in this case as embodied in the Appointments Clause. *Id.* at 536. As the Court did in *Glidden*, it should do here--not permit the *de facto* officer doctrine to save the Government from the consequences of an unconstitutional appointment.

Glidden also makes it clear that Petitioner need not demonstrate any specific harm resulting from the improper appointment. The participation of the civilian judges of the Coast Guard Court of Military Review, whose appointments were made improperly in violation of the explicit provisions of the Appointments Clause, provides a sufficient basis to invalidate the action of the Court of Military Review. *See Glidden*, 370 U.S. at 533.

Two decisions of the District of Columbia Circuit in which the *de facto* officer doctrine was discussed are instructive. *Andrade v. Lauer*, 729 F.2d 1475 (D.C. Cir. 1984), involved a challenge by current and former federal employees to actions of federal officials (a reduction in force). One of the bases of the challenge was that the actions of the officials were invalid because they had not been properly appointed. In response, those officials argued that the *de facto* officer doctrine precluded any challenge to their actions on that ground. *Id.* at 1496. The Court of Appeals noted that application of the doctrine in that case would apparently leave the plaintiffs without any remedy. *Id.* at 1497. The court rejected any interpretation of the doctrine "that would likely make it impossible for these plaintiffs to bring their assumedly substantial constitutional claim and would render legal norms concerning appointment and eligibility to hold office unenforceable." *Id.* at 1498.

Applying the analysis of *Andrade* to Petitioner's case would preclude reliance on the *de facto* officer doctrine. If the doctrine is applied, it leaves Petitioner without a remedy for the violation of his right to have his court-martial reviewed by a Court of Military Review composed of military appellate judges who have been properly appointed, even though he raised the appointment issue while his case was being reviewed by the Court of Military Review. Pet. App. 26a.

The other recent case in which the District of Columbia Circuit discussed the *de facto* officer doctrine, but rejected its applicability, is *Federal Election Comm'n v. NRA Political Victory Fund*, 6 F.3d 821 (D.C. Cir. 1993), *cert. granted*, 114 S. Ct. 2703, and *cert. dismissed*, 115 S. Ct. 537 (1994). There, an issue concerning the constitutionality of the composition of the Federal Election Commission was raised

as a defense in a civil enforcement action brought by the Commission. *Id.* at 822. The Commission argued that the constitutional claim was not justiciable because the *de facto* officer doctrine would prevent the NRA from obtaining a remedy in any event. *Id.* at 828. In rejecting application of the doctrine in a way that would prevent a ruling on the constitutional issues, the court noted that the Supreme Court, in *Northern Pipeline Constr. Co. v. Marathon Pipe Line Co.*, 458 U.S. 50 (1982), found that the scheme by which bankruptcy judges were appointed was unconstitutional, but provided relief to the party who challenged the scheme even though the opinion was to act prospectively only. *FEC v. NRA*, 6 F.3d at 828.

Moreover, as the Solicitor General noted in his brief in *FEC v. NRA*, in which he urged the applicability of the doctrine, that case did not challenge an adjudication by a person alleged to have been improperly appointed, but only a decision to investigate and then prosecute a case that would be decided by an admittedly properly appointed Article III judge. Brief for the United States as Amicus Curiae at 26-27, *FEC v. NRA*, 115 S. Ct. 537 (1994)(No. 93-1151). This case, in contrast, presents an even more serious problem, because the improperly appointed officials involved were judges who actually decided the case on appellate review.

Accordingly, because no authority has ever applied the *de facto* officer doctrine in a direct criminal appeal where the challenge is to the appointment of a judicial officer who sat on the defendant's case, and all of the cases relied on by the Government involve very different circumstances, the decision below cannot stand.

C. Applying the De Facto Officer Doctrine in This Case Would Be Contrary to This Court's Decision in Griffith v. Kentucky.

In *Griffith v. Kentucky*, 479 U.S. 314 (1987), this Court held that any newly declared constitutional rule for the conduct of a criminal case must be applied to all cases then pending on direct review. *Id.* at 321-322. The reasons for this holding included the nature of judicial review itself, and the principle of treating similarly situated litigants similarly. *Id.* at 322-323. Even when the new rule is a "clear break" with past precedent, it must be applied to criminal cases not yet final. *Id.* at 326-328; see also *Harper v. Virginia Dep't of Taxation*, 113 S. Ct. 2510 (1993); *James B. Beam Distilling Co. v. Georgia*, 501 U.S. 529, 537 (1991)(retroactive application of new rule cannot be denied civil litigants in the case that changes the rule).

A decision in favor of the Government in this case would allow the Government to introduce through the back door of the *de facto* officer doctrine, what it could not get through the front door of a decision with purely prospective effect. In essence, it would carve out an exception to *Griffith* for cases in which the constitutional defect relates to the appointment of an official involved in the case, even when the validity of that appointment had been raised, as here, at the time of the action by the improperly appointed officer. It would leave no remedy for such a constitutional defect.

Indeed, if the doctrine were relevant in a case like this, it would always be determinative of any question concerning appointment to office, and would always preclude a ruling on the merits of the constitutional claim because to do otherwise would be to render an advisory opinion. See *F.C.C. v. Pacifica Foundation*, 438 U.S. 726, 734-735 (1978)(federal courts do not have authority to issue advisory opinions). In

other words, the use of the *de facto* officer doctrine as it was applied by the Court of Military Appeals in *Carpenter, supra*, would effectively remove all such claims from judicial review and thereby allow Congress or the Executive to violate the explicit provisions of the Appointments Clause with impunity, because the *de facto* officer doctrine would always prevent a court from reaching the merits of the issue of the challenged appointment.

It is particularly inappropriate to apply the *de facto* officer doctrine in a criminal case, since it is unlikely that anyone could ever bring an anticipatory challenge to the appointment of a judge before being subject to the authority of that judge with the possibility of being adversely affected. See *Los Angeles v. Lyons*, 461 U.S. 95 (1983). Application of the doctrine to this case would leave Petitioner without a remedy for the violation his right to have his court-martial reviewed by a constitutionally-appointed court; that situation would conflict with the long-standing principle of judicial review that if there is a right, there must be a remedy for its violation. See *Marbury v. Madison*, 5 U.S. 137, 162-167 (1805).

D. This Case Does Not Present the Type of Problem the De Facto Officer Doctrine Was Intended to Prevent.

In order to fill most governmental positions, federal or state, a series of requirements must be met, some constitutional and some statutory. From time to time, mistakes may be made, such that, when a governmental action is challenged, the objecting party may argue that the person taking the action did not properly hold the office involved, and hence the action is invalid. The *de facto* officer doctrine was developed as a matter of policy and necessity to limit the circumstances in which government actions can be challenged

by attacking the title of the officeholder responsible for the action. The primary purpose of the doctrine is to protect the public and third parties who have relied on the acts of the officeholder and who would be adversely affected by a finding that the acts of the *de facto* officer were invalid, and to avoid the confusion and chaos which would result. *Norton v. Shelby County*, 118 U.S. 425, 441-442 (1886). This type of harm would be at its worst when the attack on the appointment of the officeholder occurs long after the appointment is made, and the defect is of a technical nature which could have and would have been readily cured had it been called to the government's attention in a timely fashion. *Id.*

There are no "third parties" involved here who have relied to their detriment on the acts of the improperly appointed officials involved in this case. Petitioner certainly did not rely on the acts of the officials; he contested their power to act. The Government, as the only other involved party, is not simply an innocent third party which relied to its detriment on the acts of the officials. The Government created the flawed appointment process in the first place, was aware of the issue, and chose to do nothing to correct the problem.

The significant public interest in avoiding confusion and chaos is protected by the concept of finality of judicial decisions. Petitioner is not advocating the reopening of already final decisions of the Coast Guard Court of Military Review. Only those cases still open on direct appeal and in which the issue of the defective appointments of the Court of Military Review judges was raised and preserved would be affected if this Court holds that the *de facto* officer doctrine does not protect the acts of those judges. Cases which are already final would not be affected. See Art. 76, UCMJ, 10

U.S.C. § 876; R.C.M. 1209, Manual for Courts-Martial, United States, 1984 (1994 Edition); *see also* *Teague v. Lane*, 489 U.S. 288, 305-316 (1989); *Griffith v. Kentucky*, 479 U.S. 314, 322 (1987); *but see* *United States v. Rice*, 36 M.J. 264 (C.M.A. 1993)(Court of Military Appeals will accept out-of-time requests for relief in cases in which petitions for grant of review raising Appointments Clause issues were previously denied if the Supreme Court affords relief in a case involving an Appointments Clause issue).

With this in mind, it is clear there would be no serious adverse affect on the public and no chaos or confusion. The number of cases which would be affected by a decision in favor of Petitioner is quite small, because the decision would apply only to the Coast Guard, only to cases not yet final, and only to those in which the accused preserved the issue in a timely manner. There are approximately ten other cases in which the accused is situated identically to Petitioner (*i.e.*, issue raised at the Court of Military Review, preserved in further appeals, and the Court of Military Review decision occurred before January 15, 1993) which would be directly affected by a reversal here. The *de facto* officer doctrine can not be invoked to protect the public against such a minor disturbance in the orderly conduct of the business of the nation when the right of Petitioner to have constitutionally appointed judges decide his criminal appeal is at stake.

CONCLUSION

For the reasons stated, Petitioner prays that this Court reverse the judgment of the Court of Military Appeals, and remand the case for a new hearing of his appeal in the Coast Guard Court of Military Review.

Respectfully submitted,

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